HEADNOTE

> *"1. If auxiliary requests filed in the context of an application for amendment of the patent are to be amended later, the scope of R. 263 RoP is not open from the outset. The conditions under which applications for amendment of the patent are admissible are laid down in R. 30 RoP.*
> *2. If an application for amendment of a patent is to be amended, such a request is to be classified as a further request for amendment within the meaning of Rule 30.2 RoP. It is admissible only with the permission of the Court.*
> *3. In the light of Art. 34 UPCA and the requirements of - as a rule - a uniform decision, the territorial limitation of an application to amend the patent should only be considered if there are objective reasons for such a limitation."*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 594 009 B1

LITHOGRAPHIC PRINTING PLATE ORIGINAL PLATE, AND METHOD FOR PRODUCING LITHOGRAPHIC PRINTING PLATE

KEYWORDS
Application to amend the patent
amendment of the application
R. 263 RoP
R. 30.2 RoP

Rule 263 Leave to change claim or amend case

SUMMARY
The Local Division in Düsseldorf ruled on a counterclaim for revocation. The patent at issue relates to a lithographic printing plate original plate and method for producing lithographic printing plate. According to the headnotes of the decision, auxiliary requests filed with an amendment application cannot be freely amended later. The scope of Rule 263 RoP does not apply from the outset in this context. Instead, the admissibility conditions laid down in Rule 30 RoP govern such requests. Further, if an auxiliary request itself requires amendment, this constitutes a further request for amendment under Rule 30.2 RoP. As a result, such an amendment is only admissible with the Court's permission. Additionally, in light of Article 34 UPCA and the requirement of uniform decisions, territorial limitations of amendment applications should only be accepted for objective reasons. This means that blanket or unsupported territorial restrictions face a high threshold.